

Court No. - 3

Case :- WRIT - C No. - 36610 of 2023

Petitioner :- Smt. Kushma Dixit Mahavidyalay Nagla Suraj

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Kailash Prasad Pandey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

Instructions filed today be kept on record.

Contention of the learned counsel for the petitioner is that as per the bill dated 28.05.2022, the last paid amount of Rs.2,20,000/- can be seen in the bill. Also the learned counsel for the petitioner states that the payable amount of Rs.1,36,518/- was the only amount payable. He, therefore, states that the recovery of Rs.4,11,249/- was without any basis.

Sri Ashutosh Dwivedi holding brief of Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department may file a short counter affidavit explaining as to how when the bill dated 28.05.2022 had stated that Rs.1,36,518/- was payable, the recovery was being done of Rs.4,11,249/-.

Place this case on 30th November, 2023 as fresh.

In the meantime, if the petitioner pays Rs.1,36,518/- within a period of one month from today, then no coercive action shall be taken against the petitioner.

Order Date :- 26.10.2023

Raj

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Hon'ble Siddhartha Varma,J.

Hon'ble Shekhar B. Saraf,J.

Learned counsel for the petitioner states that when the petitioner had gone to deposit Rs.1,36,518/- pursuant to the order of this Court dated 26.10.2023, the Executive Engineer/respondent No.4 refused to accept the amount.

This we consider as gross violation of the order passed by this Court.

Put up this case as fresh on 7th December, 2023.

By that date, if the amount, which has been ordered to be accepted by the Executive Engineer, is not accepted then the Executive Engineer/respondent No.4 shall appear in person on the next date fixed. The petitioner shall make the payment of the directed amount through Bank Draft.

Order Date :- 30.11.2023

Rakesh

(Shekhar B. Saraf, J.) (Siddhartha Varma, J.)

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Hon'ble Siddhartha Varma,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

1. Supplementary affidavit and the instructions filed today be kept on record.
2. Learned counsel for the Electricity Department shall supply a copy of the instructions to the learned counsel for the petitioner.
3. It has been informed by the counsel for the Electricity Department that the permanent disconnection of the petitioner's connection was done on 08.11.2021. The petitioner as per demands paid Rs.2,20,000/- on 23.11.2016, Rs.5,000/- on 06.11.2017, Rs.40,000/- on 21.11.2023 and Rs.1,36, 518/- on 05.12.2023.
4. Learned counsel for the petitioner, however, states that after permanent disconnection, no bill could have been paid and that the earlier bills were erroneously sent.
5. We therefore consider it appropriate that the petitioner may represent his case before the concerned Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code and make his complaint there itself. It is therefore being provided

that if the petitioner makes an application within a period of 15 days from today under Clause 6.5 of the U.P. Electricity Supply Code before the concerned Executive Engineer then the same shall be decided within a period of one month thereafter by the Executive Engineer.

6. For a period of two months or till a decision is taken, whichever is earlier no coercive action shall be taken against the petitioner.

7. With the aforesaid directions, the writ petition is disposed of.

Order Date :- 7.12.2023
Prajapati

(Syed Qamar Hasan Rizvi,J) (Siddhartha Varma, J)